## Higher National Diploma in Quantity Surveying

**2nd Year, 1st Semester Examination – 2022**

**QS 21032 - Contract Law I**

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| Instructions for Candidates: | No. of questions: 06 |
| **Answer four questions only** | No. of pages : 02 |
| All Questions carry equal marks | Time : 02 hours |

### Question 01

01. "Sri Lanka has a mixed Legal system" Do you agree this statement? (5 Marks)
02. Write two types of the customary laws in Sri Lanka? (4 Marks)
03. State four power and jurisdictions held by the Supreme Court? (5 Marks)
04. List out four sources of law in Sri Lanka? (5 Marks)
05. Which personal law is applicable for Kandyan Sinhala people? (2 Marks)
06. What are the two branches of the public law? (4 Marks)

**(Total 25 Marks)**

### Question 02

01. What are the essential elements required to form a valid contract? (5 Marks)
02. What are the sources of contract law? (5 Marks)
03. Write the three ways of contract formation? (4 Marks)
04. Explain the difference between an agreement and a contract? (6 Marks)
05. What are the factors affecting the validity of a contract? (3 Marks)
06. What are the two types of breach of Contract? (2 Marks)

**(Total 25 Marks)**

### Question 03

01. Differentiate the terms "offer" and "invitation to treat"? (5 Marks)
02. What are the methods of terminating a contract? (4 Marks)
03. Write four remedies for the breach of contract? (4 Marks)
04. What are the two types of offers? (2 Marks)
05. Briefly explain the term of counter offer? (5 Marks)
06. What is mirror image? (5 Marks)

**(Total 25 Marks)**

**Question 4**

01. What are the reasons for termination of an offer? (5 Marks)
02. Briefly explain the Adam vs Lindsell [1818] B & Ald 681 case ? (6 Marks )
03. What is "consideration" in contract? (5 Marks )
04. Briefly explain about breach of contract? (5 Marks )
05. What is misrepresentation in contract Law? (4 Marks)

**(Total 25 Marks)**

**Question 5**

Write short notes on any five of the following (5 X 5 = 25 Marks)

01. Misrepresentation
02. Labour Tribunal
03. Court of Appeal
04. Employees Trust Fund Act No 46 of 1980
05. Arbitration
06. The postal rule
07. Supply of Information
08. Minors
09. Duress
10. Auction sales or Advertisements

**(Total 25 Marks)**

**Question 6**

01. What is contract of employment? (6 Marks )
02. What is economic test? (5 Marks )
03. Briefly explain the Trade Unions? (6 Marks )
04. Write five trade union's actions? (5 Marks )
05. What are the classification of agents? (3 Marks )

**(Total 25 Marks)**